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Edmund G. Brown Jr.
Governor

15 June 2011

Mr. John Caudle, Assistant Superintendent
Tulare County Office of Education
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NOTICE OF APPLICABILITY

**WATER QUALITY ORDER NO. 97-10-DWQ, GENERAL WASTE DISCHARGE
REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER
TREATMENT SYSTEMS, TULARE COUNTY OFFICE OF EDUCATION, SCICON WASTE
WATER TREATMENT FACILITY, TULARE COUNTY**

The SCICON Waste Water Treatment Facility (WWTF) consists of septic tanks then subsequent leach fields. Waste Discharge Requirements (WDRs) Order No. 79-163 currently regulates the WWTF discharge. The WDRs are obsolete, inconsistent with current plans and policies of the California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), and need to be updated.

On 7 June 2011, Central Valley Water Board staff received a letter from Blair, Church & Flynn Consulting Engineers on your behalf, requesting coverage of the discharge under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order).

Based on the findings of the original WDRs, information from self-monitoring reports and facility file, and information provided in the request, the discharge meets the conditions of the General Order. The discharge is hereby covered under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems*. The facility is assigned Notice of Applicability (NOA) No. 97-10-DWQ-R5-079.

The following requirements contained within the General Order apply to the subject discharge:

1. All Section A Prohibitions,
2. Section B Requirement Nos. 1.a-1.d, 2.a-2.c, and 5.a-5.b;
3. All Section C Ground Water and Surface Water Limitations;
4. Section D Provision Nos. 1.a-1.v, 2.a-2.b, and 4; and
5. All Attachment B Standard Provisions and Reporting for Waste Discharge Requirements.

California Environmental Protection Agency

The following sections of Attachment A Monitoring and Reporting Program (MRP) No. 97-10-DWQ, apply to the discharge:

1. Septic Tank Monitoring, and
2. Reporting.

LOCATION

The Tulare County Office of Education operates the WWTF 25 miles northeast of Porterville and eight miles northeast of Springville in the Sierra Nevada Mountains, at an elevation of about 2300 feet. Bear Creek, a tributary of the north fork of the Tule River, traverses the grounds. The eastern boundary of the property joins the Sequoia National Forest. The facility is located in Section 7, T20S, R30E, MDB&M.

The WWTF is in the Tulare Lake Basin. The *Water Quality Control Plan for the Tulare Lake Basin, Revised January 2004* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

DESCRIPTION

The treatment and disposal facilities consist of seven septic tanks with leach fields that accept effluent from on-site facilities. During early 2011, wastewater flow at the WWTF was recorded to vary from 1,000 gpd to 14,000 gpd with an average of 10,069 gpd.

The population at the site averages approximately 300 people each weekday, including staff, counselors, students and teachers. There are 25 staff and 15 counselors that live at the site during the school year. Students arrive on Monday mornings and typically leave by noon the following Friday. The SCICON facilities do not operate during school holidays and there are no proposed expansions to the site.

The natural surface water near the site is Bear Creek. The beneficial uses of underlying groundwater identified in the Basin Plan are: municipal and domestic supply, industrial service supply, industrial process supply, and agricultural supply.

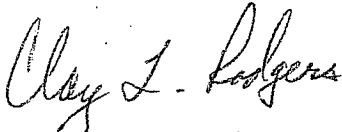
FACILITY-SPECIFIC REQUIREMENTS

In addition to the above requirements, the Tulare County Office of Education must comply with the following:

1. Discharge of wastewater at a location or in a manner different from that described above is prohibited.
2. The WWTF shall be operated in accordance with the requirements contained in the General Order.
3. The waste discharge shall not enter surface waters or surface water drainage courses.

4. The Tulare County Office of Education shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board), if applicable, until the NOA is officially terminated.
5. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its monitoring and reporting requirements, could result in enforcement actions, as authorized by provisions of the California Water Code.

If you have any questions regarding this NOA, please contact Dale Harvey at (559) 445-6190.


for Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ